The Commission presents an annual report to the President. It can also submit a report as and when it thinks necessary.

The President places all such reports before the Parliament, along with a memorandum explaining the action taken on the recommendations made by the Commission. The memorandum should also contain the reasons for the non-acceptance of any of such recommendations.

The President also forwards any report of the Commission pertaining to a state government to the state government[6] (and not to the state governor). The government places it before the state legislature, along with a memorandum explaining the action taken on the recommendations of the Commission. The memorandum should also contain the reasons for the non-acceptance of any of such recommendations.

POWERS

The Commission is vested with the power to regulate its own procedure.

The Commission, while investigating any matter or enquiring into any complaint, has all the powers of a civil court trying a suit and in particular in respect of the following matters:

1. Summoning and enforcing the attendance of any person from any part of India and examining him/her on oath
2. Requiring the discovery and production of any document
3. Receiving evidence on affidavits
4. Requisitioning any public record from any court or office
5. Issuing summons for the examination of witnesses and documents
6. Any other matter which the President may determine

The central government and the state governments are required to consult the Commission on all major policy matters affecting the socially and educationally backward classes. However, the 105th Amendment Act of 2021 exempted the state governments from this consultation with the Commission with respect to the preparation and maintenance of the list of socially and educationally backward classes for their own purposes.

[1]Indra Sawhney vs. Union of India (1992).

[2]Vide the National Commission for Backward Classes Act, 1993.

[3]The National Commission for Backward Classes (Repeal) Act, 2018, repealed the National Commission for Backward Classes Act, 1993.

[4]The 102nd Amendment Act of 2018 inserted a new Article 342-A enabling the President to specify the socially and educationally backward classes.

[5]The National Commission for Backward Classes Chairperson, Vice-Chairperson and Members (Conditions of Service and Tenure) Rules, 2018.

[6]Clause 7 of Article 338B.